

CRIMINAL LAW

Friday, September 4
(Lecture 2)

*Hello! This slide will
help you prepare for
today's class*

*(featuring a special
guest – Molly, one of
our Dean's Fellows!).*

- We will start by wrapping up our discussion of the three key themes that were introduced last class.
- Next, we will discuss sentencing, focusing on the principle of proportionality. We will discuss the assigned Criminal Code provisions and *Arcand*, including in relation to our three 'key themes.'
- Finally, we will turn to *R v Gladue* (which I will tell you about) and *R v Ipeelee* (which you read). Please be prepared to discuss *Ipeelee*.

JLSP

Journal of Law &
Social Policy



@jlsp_osgoode

We're recruiting....

JUNIOR EDITORS

for our 2026-2027 Editorial Board!



*Passionate about legal scholarship,
social justice advocacy, and working
with marginalized groups?*

APPLY NOW! 



Applications due: Tuesday, September 8th @11:59pm

CRIMINAL LAW

**Friday, September 4
(Lecture 2)**

Objectives for Week 1

1. **Begin to think critically about the purpose(s) of the criminal justice system in relation to the scope of criminalization.**
2. **Explain the principle of restraint as it relates to the scope of criminalization.**
3. **Start to think about three key themes of the course:**
 - **Blameworthiness – Responsibility – Fault**
 - **Individual & Collective Rights, Interests, Burdens**
 - **Discretion vs. Rule of Law**

Criminal Offences - *Arcand*

“[T]he criminal law, by affirming and reinforcing collective values, protects not only individuals but society as a whole. The underlying premise of Canada’s criminal law, that crimes are wrongs to both individuals and the community, is both venerable and ancient” (*R v Arcand* at para. 32)

R. v. ...



Three Key Themes

- **Blameworthiness – Responsibility – Fault**
- **Individual & Collective Rights, Interests, and Burdens**
- **Discretion vs. Rule of Law**

Senate Standing Committee – the Purposes of Criminal Justice

“I think that when starting your review, you must look at and consider whether the criminal justice system is really structured to handle much of what it receives. It receives the addicted, the homeless, the poverty stricken and the mentally ill, but the criminal justice system was not meant to really deal with those sorts of issues, and more and more they are taking up time.”

Senate Standing Committee, *Delaying Justice is Denying Justice*,
(quoting the Honourable P.J. LeSage,
former Chief Justice of the Ontario Superior Court of Justice)

Three Key Themes

- **Blameworthiness – Responsibility – Fault**
- **Individual & Collective Rights, Interests, and Burdens**
- **Discretion vs. Rule of Law**

Discretion

“To implement the Committee’s proposition that the criminal law should be enforced with a minimum of harm to the offender, discretion should be exercised in cases involving individuals who are technically guilty of an offence but where no useful purpose would be served by the laying of a charge. Where a charge is laid, discretion should be exercised as to the manner in which the law is applied.”

(Ouimet Report)

The Rule of Law

“Unfettered discretion invites arbitrary decision-making.”

(Arcand at para. 21).

The Rule of Law (continued)

- *A loose and contested concept...*
- **People are ruled by the law, not by people**
- **Laws are consistent: no-one is above the law; everyone is equal under the law**
- **Laws are known, transparent: no secret or retroactive laws**

Sentencing



Toronto South Detention Centre

Objectives for Week 1

(continued)

4. Identify and explain the purpose and principles of sentencing set out in the *Criminal Code*, including the fundamental principle of proportionality.
5. Start to think about sentencing in relation to our “key themes.”
6. Explain the distinct approach to sentencing Indigenous offenders mandated by s. 718.2(e) of the *Criminal Code* and developed in *Gladue* and *Ipeelee*, including how it is applied and its stated purposes.
7. Reflect on the arguments for and against that distinct approach (some of which are canvassed in *Ipeelee*).

Purpose of Sentencing

S. 718 “The fundamental purpose of sentencing is to **protect society** and to contribute, along with crime prevention initiatives, to **respect for the law** and the maintenance of a **just, peaceful and safe society** by imposing just sanctions that have one or more of the following objectives...”

Sentencing Objectives

- Denunciation**
- Deterrence (general, specific)**
- Separation [i.e., incapacitation; isolation]**
- Rehabilitation**
- Reparation**
- Responsibility & acknowledgment**

Proportionality (1/2)

S. 718.1

“A sentence must be proportionate to the gravity of the offence and the degree of responsibility of the offender.”

Proportionality ^(1/2)

“Proportionality is the *sine qua non* of a just sanction. First, the principle ensures that a sentence reflects the gravity of the offence. This is closely tied to the objective of denunciation. It promotes justice for victims and ensures public confidence in the justice system. [...]

Second, the principle of proportionality ensures that a sentence does not exceed what is appropriate, given the moral blameworthiness of the offender. In this sense, the principle serves a limiting or restraining function and ensures justice for the offender.

In the Canadian criminal justice system, a just sanction is one that reflects both perspectives on proportionality and does not elevate one at the expense of the other.”

(*R. v. Ipeelee*, 2012 SCC 13 at para. 37)

Annotated Code (pp. 1549-1553)

718.1. Fundamental principle

A sentence must be proportionate to the gravity of the offence and the degree of responsibility of the offender.

1995, c. 22, s. 6

§ CC718.1:1 Commentary

The section codifies the principle of proportionality.

§ CC718.1:2 Case Law

The Principle of Proportionality

R. v. Parranto, 2021 SCC 46, 75 C.R. (7th) 217—Proportionality is the organizing principle for a fit, fair and principled sentence. Parity and individualization are secondary principles. Individualization is central to proportionality in assessing the gravity of the offence, the degree of the offender's responsibility, and the circumstances of the case.

1549

CRIMINAL CODE — PART XXIII (ss. 716-751.1)

S. 718.2

§ CC718.1:3 Related Provisions

Criminal Code, R.S.C. 1985, c. C-46, s. 718 sets out the objectives of sentencing. Additional principles are contained in s. 718.2

Other Sentencing Principles (1/2)

s. 718.2 [...]

(b) a sentence should be similar to sentences imposed on similar offenders for similar offences committed in similar circumstances [**principle of parity**]

[...]

(d) an offender should not be deprived of liberty, if less restrictive sanctions may be appropriate in the circumstances [**principle of restraint**]

Objectives for Week 1

(continued)

5. Start to think about sentencing in relation to our “key themes.”
 - Blameworthiness – Responsibility – Fault
 - Individual & Collective Rights, Interests, Burdens
 - Discretion vs. Rule of Law

Discretion

“Unfettered discretion invites arbitrary decision-making.”

(Arcand at para. 21)

Discretion & Sentencing Reform

“Reform, when it came, was driven largely by dissatisfaction with unjustified disparities in sentencing. Inconsistent application of principles had been seen to produce inconsistent results, thereby attracting public concern about the perceived – and actual – unfairness of the criminal justice system.”

(Arcand at para. 22)

Objectives for Week 1 (continued)

4. Identify and explain the purpose and principles of sentencing set out in the *Criminal Code*, including the fundamental principle of proportionality.

5. Start to think about sentencing in relation to our “key themes” – in particular, discretion vs. the rule of law.

Objectives for Week 1 (continued)

6. Explain the distinct approach to sentencing Indigenous offenders mandated by s. 718.2(e) of the *Criminal Code*, and which was developed in *Gladue* and *Ipeelee*, including how it is applied, and its stated purposes.
7. Reflect on the arguments for and against that distinct approach (some of which are canvassed in *Ipeelee*).

Other Sentencing Principles (2/2)

s. 718.2 [...]

(e) all available sanctions, other than imprisonment, that are reasonable in the circumstances and consistent with the harm done to victims or to the community should be considered for all offenders, with particular attention to the circumstances of Aboriginal offenders.

Gladue Sentencing – Legislative history

“According to the then-Minister of Justice, Allan Rock, ‘the reason we referred specifically there to aboriginal persons is that they are sadly overrepresented in the prison populations of Canada’

(House of Commons, *Minutes of Proceedings and Evidence of the Standing Committee on Justice and Legal Affairs*, No. 62, 1st Sess., 35th Parl., November 17, 1994, at p. 15)” (*Ipeelee* at para. 56)

The Overrepresentation of Indigenous Persons in Canadian Prisons (1989-1999)

- **1989-1994: 11.8% of admissions to federal prison (average over the period; 3% total population)**
- **1996: s. 718.2(e) introduced**
- **1999: *R. v. Gladue*, [1999] 1 SCR 688**

Gladue Sentencing – S. 718.2(e)

“Section 718.2(e) is not simply a codification of existing jurisprudence. It is remedial in nature. Its purpose is to ameliorate the serious problem of overrepresentation of aboriginal people in prisons, and to encourage sentencing judges to have recourse to a restorative approach to sentencing. There is a judicial duty to give the provision’s remedial purpose real force.”

(Gladue at para. 93)

Gladue Sentencing

... the judge must [also] consider:

(A) The unique systemic or background factors which may have played a part in bringing the particular aboriginal offender before the courts; and

(B) The types of sentencing procedures and sanctions which may be appropriate in the circumstances for the offender because of his or her particular aboriginal heritage or connection.

Judicial Notice

“[C]ourts must take judicial notice of such matters as the history of colonialism, displacement, residential schools and how that history continued to translate into lower educational attainment, lower incomes, higher unemployment, higher rates of substance abuse and suicide, and of course higher levels of incarceration for Aboriginal peoples.

(Ipeelee at para. 60)

Residential Schools

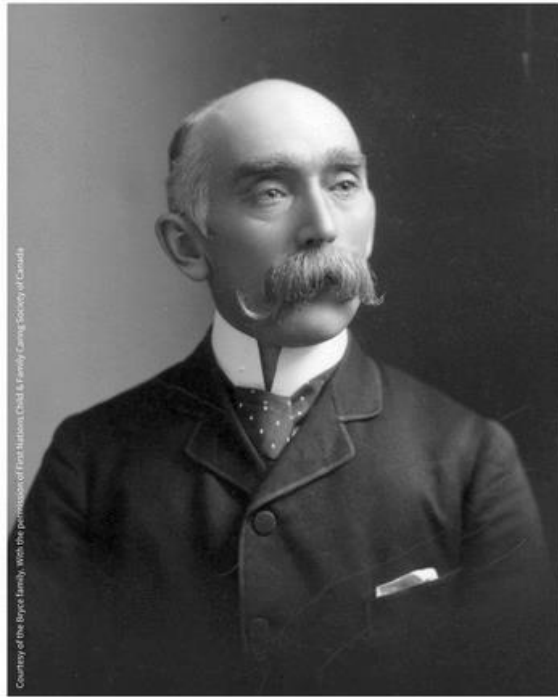


Residential Schools (continued)

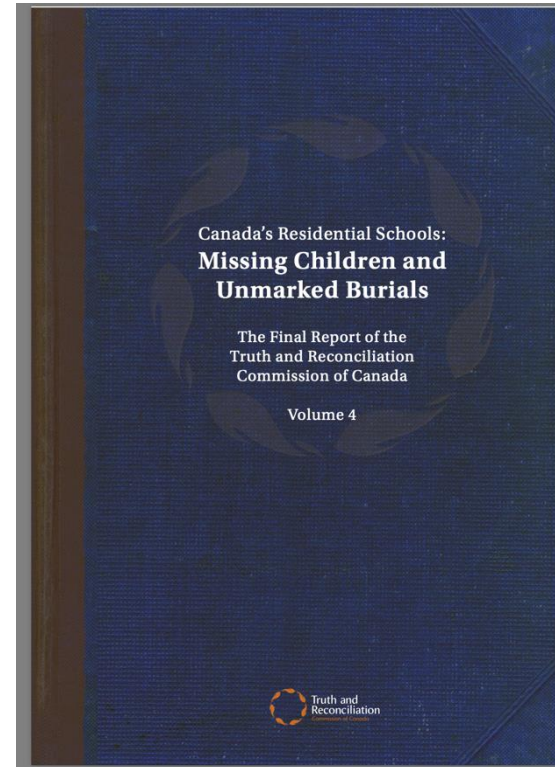
“When the school is on the reserve the child lives with its parents, who are savages; he is surrounded by savages, and though he may learn to read and write his habits, and training and mode of thought are Indian. He is simply a savage who can read and write. [...] Indian children should be withdrawn as much as possible from the parental influence, and the only way to do that would be to put them in central training industrial schools where they will acquire the habits and modes of thought of white men.”

- John A. Macdonald, addressing House of Commons in 1883

Dr. Bryce (1922); TRC (2015)



Dr. Peter Henderson Bryce (1853-1932)
“The Story of a National Crime” (1922)



Truth and Reconciliation
Commission of Canada (2015)

Judicial Notice (continued)

“[C]ourts must take judicial notice of such matters as the history of colonialism, displacement, residential schools and how that history continued to translate into lower educational attainment, lower incomes, higher unemployment, higher rates of substance abuse and suicide, and of course higher levels of incarceration for Aboriginal peoples.

These matters, on their own, do not necessarily justify a different sentence for Aboriginal offenders. Rather, they provide the necessary *context* for understanding and evaluating the case-specific information presented by counsel.”

(Ipeelee at para. 60)

Gladue Sentencing

... the judge must [also] consider:

(A) The unique systemic or background factors which may have played a part in bringing the particular aboriginal offender before the courts; and

(B) The types of sentencing procedures and sanctions which may be appropriate in the circumstances for the offender because of his or her particular aboriginal heritage or connection.

Monture-Okanee

“There is no such thing as an Aboriginal court. Courts are, by their very nature, adversarial. This was not the historic process whereby disputes and disturbances in our communities were resolved. [...] [T]he conversation always ends with the establishment of small pilot projects, diversion initiatives, sentencing circles and the possibility, someday, of Aboriginal courts. [...] These kinds of initiatives are both inadequate and insufficient if the goal of our joint efforts is to ameliorate the existing oppression and discrimination that Aboriginal people face.”

Patricia Monture-Okanee, “Thinking About Aboriginal Justice: Myths and Revolution”

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Gladue* (1989-2012)

- **1989-1994: 11.8% of admissions to federal prison**
- **1996: s. 718.2(e) introduced**
- **1999: *Gladue* decided**
- **2005: 17% of admissions to federal prison**
- **2012: *Ipeelee* decided**

Criminal Code ss. 718.04 & 718.201

718.04 When a court imposes a sentence for an offence that involved the abuse of a person who is vulnerable because of personal circumstances — including because the person is Aboriginal and female — the court shall give primary consideration to the objectives of denunciation and deterrence of the conduct that forms the basis of the offence.

718.201 A court that imposes a sentence in respect of an offence that involved the abuse of an intimate partner shall consider the increased vulnerability of female persons who are victims, giving particular attention to the circumstances of Aboriginal female victims.

R. v. Ipeelee

“Three interrelated criticisms have been advanced:

- (1) sentencing is not an appropriate means of addressing overrepresentation;**
- (2) the *Gladue* principles provide what is essentially a race-based discount for Aboriginal offenders; and**
- (3) providing special treatment and lesser sentences to Aboriginal offenders is inherently unfair as it creates unjustified distinctions between offenders who are similarly situated, thus violating the principle of sentence parity.” (at para. 64)**

Three Criticisms

- Sentencing not appropriate means of addressing
- “Race-based discount”
- Violates principle of parity

REFLECTION QUESTIONS

- Which of the three criticisms do you think is the most cogent?
- How does the Court respond to that criticism?
- Is the Court’s response convincing? Can you augment or critique the response?

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2012-2016)

- **1989-1994: 11.8% of admissions to federal prison**
- **2005: 17% of admissions to federal prison**
- **2012: *Ipeelee* decided**
- **2013: 23.2% of federal inmate population**
 - **Compared to about 4% of overall population**
 - **Rate worse for women, at 33.6%**
- **2016: 25.4% of federal inmate population**
 - **Compared to about 4% of overall population**
 - **Rate worse for women, at 36%**

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2018)

“As of March 31, 2018, Indigenous inmates represented 28% of the total federal in-custody population while comprising just 4.3% of the Canadian population. [...]

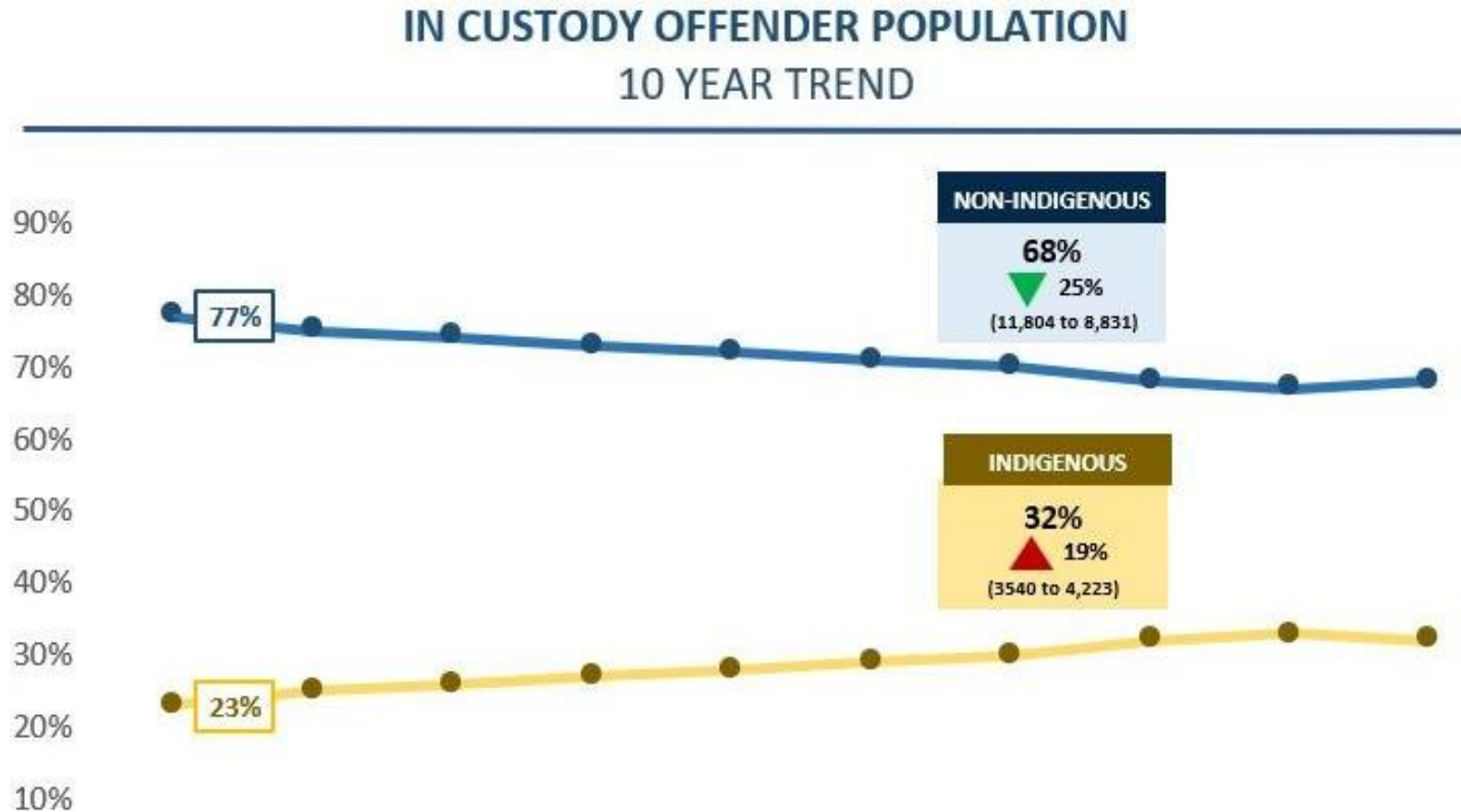
The situation continues to worsen for Indigenous women. [...]. At the end of the reporting period [March 2018], 40% of incarcerated women in Canada were of Indigenous ancestry. These numbers are distressing.”

Office of the Correctional Investigator, Statistical Update on Indigenous Overincarceration, Annual Report 2017-2018 (pp. 61-62)

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2020-2021)

- **2020/2021: 18% decline in incarceration rate for Indigenous persons**
 - *But compare 27% decline for non-Indigenous persons*
 - *Result: over-representation rate increased by 14% during this period*
- **30% of male admissions (provincial/territorial) & 32% (federal)**
- **42% of female custody admissions (provincial/territorial) & 40% (federal)**
- **50% of youth admissions to custody (compare 8% of youth population)**

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (“10 year trend”)



Source: Government of Canada

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2022-2023)

- **2022/2022:**
 - **5% overall Canadian population**
 - **32% of federal in-custody population**
 - **For Indigenous women, 48% of federal in-custody population**

The Overrepresentation of Indigenous Persons in Canadian Prisons After *Ipeelee* (2023-2024)

- **2023/2024:**
 - **5% overall Canadian population**
 - **33% of admissions to federal in-custody population**
 - **For Indigenous women, 49% of federal admissions**

“There are very real dangers to failing to understand our history and our moment in time. It is easy with the benefit of hindsight to look back at the people who got caught up in the implementation of damaging policies and to judge their failings. It is less easy to take stock of the current moment and assess what role we are playing and how our grandchildren will assess our contributions to justice.”

R v Morrisseau, 2017 ONCJ 307 (per Gibson J.)

Objectives for Week 1 (continued)

6. Explain the distinct approach to sentencing Indigenous offenders mandated by s. 718.2(e) of the *Criminal Code*, and which was developed in *Gladue* and *Ipeelee*, including how it is applied, and its stated purposes.
7. Reflect on the arguments for and against that distinct approach (some of which are canvassed in *Ipeelee*).